

24STCV33489 24STCV33489

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 13, 2026

CASE NUMBER

24STCV33489

MOTIONS

Demurrer to First Amended Complaint

MOVING PARTY

Defendant City of Los Angeles

OPPOSING PARTIES

Plaintiffs Amani McGee and Markesha Cummings

MOTION

Defendant City of Los

Angeles ("Defendant") demurs to the first amended complaint of Plaintiffs Amani McGee and Markesha Cummings ("Plaintiffs").

Plaintiffs oppose the demurrer.

ANALYSIS

"It is black

letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must "liberally construe[]" the allegations of the complaint. (Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

Plaintiffs sued

Defendant based on the death of Decedent Miah Ladell Banks ("Decedent"). Plaintiffs allege Decedent attended a gathering at a warehouse at which someone shot Decedent; Defendant's police department personnel prevented emergency medical personnel from assisting Decedent; and Decedent died as a result. (First Amended Complaint, ¶¶ 12-13.)

Defendant is a

governmental entity. Government Code

section 815, subdivision (a) provides "[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person," except as provided by statute. (Hoff v. Vacaville Unified School Dist. (1998) 19 Cal.4th 925, 932.) "[D]irect tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on the general tort provisions of Civil Code section 1714. Otherwise, the general rule of immunity for public entities would be largely eroded by the routine application of general tort principles." (Eastburn v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1183.) Moreover, to state a claim against a public entity, "every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty." (Searcy v. Hemet Unified School Dist. (1986) 177 Cal.App.3d 792, 802.)

In the third cause

of action in their complaint, Plaintiffs allege Defendant is liable pursuant to

Government Code sections 815.6, 820, and 820.8. (First Amended Complaint, ¶ 33.) However, pursuant to Government Code section

845, Defendant cannot be liable for failing to provide sufficient police

protection service. (Gov. Code, § 845.) The immunity set forth in that provision

shields Defendant from claims based on its failure to rescue shooting victims. (See, e.g., *Lopez v. City of San Diego* (1987) 190 Cal.App.3d 678, 681 [in the context of a mass shooting at a restaurant,

Court of Appeal held "[i]n the usual situations involving the performance of police duties, [a special relationship between the police and victims] has been held to depend on representations or conduct by the police which cause the victim(s) to detrimentally rely on the police such that the risk of harm as the result of police negligence is something more than that to which the victim was already exposed"].) This immunity

extends to paramedics and other rescue personnel as well as to police officers. (*Zepeda v. City of Los*

Angeles (1990) 223 Cal.App.3d 232, 235-236.)

In opposition,

Plaintiffs rely on *Williams v. State of California* (1983) 34 Cal.3d 18,

which is not on point. In that case, the

California Supreme Court held when a police officer voluntarily assumes a protective duty and undertakes action, he or she must exercise due care not to increase the risk to which the citizen is exposed, or to induce the citizen to

rely on other protective measures. (*Id.* at p. 24.) In the instant case, however, Plaintiffs'

claims are not premised on Defendant's voluntary assumption of a duty to

protect Decedent. Indeed, Plaintiffs

allege Defendant failed to permit Decedent to receive medical assistance. (First Amended Complaint, ¶¶ 12, 33.) They do not allege Defendants, through the

actions or conduct of its personnel, voluntarily assumed a special duty to

Decedent or otherwise induced reliance on a promise, express or implied. Accordingly,

Government Code section 845 would appear to bar Plaintiffs' claims.

In addition, pursuant

to Health and Safety Code section 1799.106, firefighters, law enforcement

officers, emergency medical technicians, registered nurses, and the agencies

hiring them are not liable for damages resulting from emergency treatment

rendered at the scene of an emergency or during an emergency transport, unless

they acted in a grossly negligent manner or without good faith. Likewise, emergency rescue personnel who are

employees of a federal, state, local, or private firefighting agency are not liable unless they act in bad faith or in a grossly negligent manner. (Health & Safety Code, § 1799.107.) Thus, if Plaintiffs contend rescue personnel provided incorrect or inappropriate treatment for Decedent, Plaintiffs must allege facts which establish such personnel were grossly negligent or acted in bad faith.

Defendant also argues Plaintiffs failed to exhaust their administrative remedies. Pursuant to the Government Claims Act, a party with a claim for damages against a public entity must first file the claim directly with that entity. The party may file a lawsuit only if the public entity denies or rejects the claim. (Gov. Code §§ 905, 945.4; City of Ontario v. Superior Court (1993) 12 Cal.App.4th 894.) This claims presentation requirement provides the public entity with an opportunity to evaluate the claim and decide whether to pay on it. (Roberts v. County of Los Angeles (2009) 175 Cal.App.4th 474.) Failure to allege facts demonstrating compliance with the claims presentation requirement subjects the complaint to a general demurrer. (State of Calif. v. Superior Court (2004) 32 Cal.4th 1234, 1239.)

In this regard, Plaintiffs allege they filed a claim with Defendant. (First Amended Complaint, ¶ 10.) The claim is on behalf of Plaintiffs. (First Amended Complaint, Exhibit A, p. 1.) For pleading purposes, Plaintiffs' allegations suffice. If Defendant contends Plaintiffs did not file this claim, Defendant must conduct the appropriate discovery and raise that argument through an evidentiary motion.

The Court has already provided Plaintiffs with one opportunity to amend the complaint to state claims against Defendant. As explained above, Plaintiffs have not yet sufficiently done so. However, in an abundance of caution, the Court will provide Plaintiffs with another opportunity to amend to cure the deficiencies the Court has noted to date. (See City of Stockton v. Superior Court (2007) 42 Cal.4th 730, 747 [further amendment permitted when operative complaint "does not on its face foreclose any reasonable possibility of amendment"].)

CONCLUSION AND ORDER

Defendant's

demurrer to Plaintiffs' first amended complaint is sustained with leave to amend. Plaintiffs are to file a second amended complaint within 20 days of notice of this order.

Defendant is

ordered to provide notice of the Court's ruling and to file a proof of service of same.